

THE STATE OF TEXAS §
 §
COUNTY OF HARRIS §

THIS TRUST AGREEMENT is made and entered into between RICHARD DEAN HODGE (the "Husband") and JESSICA JAE HODGE (the "Wife"), as Grantors (the "Grantors"), and RICHARD DEAN HODGE and JESSICA JAE HODGE, as initial Co-Trustees (collectively, the "Trustee").

WITNESSETH:

The Grantors desire to create a trust for the purposes and upon the terms and provisions hereinafter set forth. Accordingly, the Grantors have herewith transferred to the Trustee, and the Trustee does, by the execution of these presents, acknowledge receipt from the Grantors of the sum of one dollar in cash. These properties, together with any other property conveyed to the Trustee subject to the trust hereby created, shall be held, administered and distributed by the Trustee, upon the trust and for the purposes and uses herein set forth. The trust initially created under this Trust Agreement shall be known as the "Hodge Revocable Trust" (though herein referred to as the "Article II Trust").

ARTICLE I - IDENTIFICATION

The Husband has two children from a previous marriage, KELSEY HODGE and KASEY HODGE. The Wife has two living children from a previous marriage, OLIVIA R. DURR and CHRISTIAN A. DURR, and one deceased child, MICHAEL J. DURR. All references in this Trust Agreement to the Grantors' "children" are to KELSEY HODGE, KASEY HODGE, OLIVIA R. DURR, and CHRISTIAN A. DURR. All references to the Grantors' "descendants" are to KELSEY HODGE, KASEY HODGE, OLIVIA R. DURR, and CHRISTIAN A. DURR and the children or more remote descendants of KELSEY HODGE, KASEY HODGE, OLIVIA R. DURR, and CHRISTIAN A. DURR.

ARTICLE II - INITIAL TRUST

2.1 Creation of Article II Trust. The Trustee shall hold, manage, sell, exchange, invest, and reinvest the property of the Article II Trust, collect all income, and after deducting such expenses as are properly payable, shall accumulate and distribute the income and principal as herein provided.

2.2 Distributions to Grantors and to Surviving Grantor. While both of the Grantors are living, the Trustee shall distribute the income and principal of the Article II Trust to the Grantors in such amounts as either of the Grantors may direct. After the death of the first Grantor to die (the "deceased Grantor"), the Trustee shall distribute the income and principal of the Article II Trust remaining after the distributions under section 2.5 to the other Grantor (the "surviving Grantor") in such amounts as the surviving Grantor may direct. All trust income not otherwise appointed by the Grantors shall be accumulated and invested.

2.3 Distributions for Grantors and Surviving Grantor Upon Incapacity. If the Trustee determines that one or both of the Grantors (or the surviving Grantor) is severely ill, incapacitated or unable to communicate with the Trustee, then the Trustee shall distribute such amounts of income and principal of the Article II Trust for the comfort, health, support, maintenance, or other needs of the Grantors (or the surviving Grantor) as the Trustee determines to be necessary or appropriate to maintain the Grantors (or the surviving Grantor) in accordance with their accustomed standard of living at the time of the execution of this Trust Agreement.

2.4 Division Into Grantors' Shares. Following the death of the deceased Grantor, the Trustee shall divide the then remaining trust property into two separate shares, which may be unequal in value. One of such shares shall initially contain that portion of the Article II Trust property that constituted the property of the deceased Grantor. This share shall be called the "deceased Grantor's share." The other share shall initially contain that portion of the Article II Trust property that constituted the property of the surviving Grantor. This share shall be called the "surviving Grantor's share."

2.5 Distribution of Deceased Grantor's Share. Following the death of the deceased Grantor, all property owned by the deceased Grantor and received by the

Trustee pursuant to the deceased Grantor's Will, under this Trust Agreement, or otherwise shall be added to and distributed as part of the deceased Grantor's share. The property of the deceased Grantor's share shall be distributed as follows:

(a) Except as otherwise provided in a letter or memorandum entirely in the deceased Grantor's handwriting and signed by the deceased Grantor after the date of this Trust Agreement, the deceased Grantor's interest in Personal Effects shall be distributed to the surviving Grantor; provided, however, such property shall continue to be held in the Article II Trust for the benefit of the surviving Grantor unless the surviving Grantor directs the Trustee to distribute such property outright to the surviving Grantor;

(b) The deceased Grantor's interest in the surviving Grantor's employee or self-employed benefit plans and individual retirement accounts shall be distributed to the surviving Grantor;

(c) The deceased Grantor's interest in all life insurance policies on the life of the surviving Grantor shall be distributed to the surviving Grantor;

(d) The deceased Grantor's interest in the Grantors' primary residence shall continue to be held in the Article II Trust.

(e) Except to the extent otherwise provided in the applicable provisions of the deceased Grantor's Will, the Trustee shall pay first from the remainder of the deceased Grantor's share after any distributions under subsections (a) - (c), if any, and the retention of the residence in subsection (d), all estate tax arising in connection with the deceased Grantor's death with respect to all property included in the deceased Grantor's gross estate for the purpose of calculating such estate tax passing under the deceased Grantor's Will, under a memorandum entirely in the deceased Grantor's handwriting and signed by the deceased Grantor after the date of this Trust Agreement, or under this Trust Agreement. The Trustee shall have the authority to apply all or any portion of any beneficiary's share of, or beneficial interest in, the property to be distributed as part of the remainder of the deceased Grantor's share toward the payment of all or any portion of such beneficiary's allocable share of the deceased Grantor's estate tax caused by such beneficiary's interest in any property included in the deceased Grantor's gross estate for the purpose of calculating such tax but passes to such beneficiary under an instrument (for example, a beneficiary designation) other than the deceased Grantor's Will or this Trust Agreement. If separate trusts are created for any beneficiary under this Trust Agreement then, to the extent possible, the payment of any estate tax allocated to such trusts shall first be made from the property of such trust

created under this Trust Agreement for such beneficiary with an inclusion ratio greater than zero (or if such trust has not yet been funded, from property to be allocated to such trust) before such payments are made from such trust created under this Trust Agreement for such beneficiary with an inclusion ratio of zero (or if such trust has not yet been funded, from property to be allocated to such trust). The Trustee, in the Trustee's discretion, may pay first from the remainder of the deceased Grantor's share after any distribution under subsections (a) - (c), if any, all or any part of the deceased Grantor's funeral expenses, legally enforceable claims against the deceased Grantor's estate and all expenses of administration of the deceased Grantor's estate. The Trustee may make such payments directly or may pay over the amounts thereof to the personal representative of the deceased Grantor's estate. Written statements by the personal representative of the deceased Grantor's estate of the sums that may be paid under this subsection shall be sufficient evidence of their amounts, and the Trustee shall be under no duty to see to the application of any such payments; and

(f) The balance of the deceased Grantor's share after any distributions and retentions under subsections (a) - (e) shall be retained by the Trustee of the Article II Trust.

2.6 Surviving Grantor's Share. After the deceased Grantor's death, all property allocated to the surviving Grantor's share shall continue to be held in the Article II Trust until the death of the surviving Grantor.

2.7 Withdrawal by Surviving Grantor. After the deceased Grantor's death, the surviving Grantor may withdraw all or any part of the principal of the Article II Trust remaining after the distributions under section 2.5 upon written notice to the Trustee.

2.8 General Testamentary Power of Appointment. After the deceased Grantor's death, the surviving Grantor shall have the general testamentary power to appoint (outright, in trust or otherwise) all or any part of the income and principal of the Article II Trust remaining after the distributions under section 2.5 to any person or persons and/or to the surviving Grantor's estate. This power shall be exercisable only by specific reference in the surviving Grantor's Will or other acknowledged instrument executed by the surviving Grantor to be effective upon the surviving Grantor's death.

2.9 Addition of Surviving Grantor's Property. Following the death of the surviving Grantor, all property owned by the surviving Grantor and received by the

Trustee pursuant to the surviving Grantor's Will, under this Trust Agreement, or otherwise shall be added to and distributed as part of the Article II Trust.

2.10 Termination. Following the death of the surviving Grantor, the Article II Trust shall terminate in accordance with section 8.8. Upon such termination, the remaining unappointed property of the Article II Trust shall be distributed as follows:

(a) Except as otherwise provided in a letter or memorandum entirely in the surviving Grantor's handwriting and signed by the surviving Grantor after the date of this Trust Agreement, the surviving Grantor's interest in Personal Effects shall be distributed outright to the Grantors' children in substantially equal shares, with particular items to be allocated as they may agree, or if they cannot agree, as the Trustee shall determine;

(b) Except to the extent otherwise provided in the applicable provisions of the surviving Grantor's Will, following the death of the surviving Grantor, the Trustee shall pay first from the remaining unappointed property of the Article II Trust after any distribution under subsection (a) all estate tax arising in connection with the surviving Grantor's death with respect to all property included in the surviving Grantor's gross estate for the purpose of calculating such estate tax passing under the surviving Grantor's Will, under a memorandum entirely in the surviving Grantor's handwriting and signed by the surviving Grantor after the date of this Trust Agreement, or under this Trust Agreement. The Trustee shall have the authority to apply all or any portion of any beneficiary's share of, or beneficial interest in, the property to be distributed as part of the Article II Trust toward the payment of all or any portion of such beneficiary's allocable share of the surviving Grantor's estate tax resulting from such beneficiary's interest in any property being included in the surviving Grantor's gross estate for the purpose of calculating such estate tax but passing to such beneficiary under an instrument (for example, a beneficiary designation) other than the surviving Grantor's Will or this Trust Agreement. If separate trusts are established for any beneficiary under this Trust Agreement then, to the extent possible, the payment of any estate tax allocated to such trusts shall first be made from the property of such trust established under this Trust Agreement for such beneficiary with an inclusion ratio greater than zero (or if such trust has not yet been funded, from property to be allocated to such trust) before such payments are made from such trust established under this Trust Agreement for such beneficiary with an inclusion ratio of zero (or if such trust has not yet been funded, from property to be allocated to such trust). In addition, the Trustee, in the Trustee's discretion, may first pay from the remaining unappointed property of the Article II Trust after any distribution under subsection (a) all or any part of the surviving Grantor's funeral expenses, legally enforceable claims against the surviving Grantor's estate (including estate tax) and all expenses of administration of the surviving Grantor's

estate. The Trustee may make such payments directly or may pay over the amounts thereof to the personal representative of the surviving Grantor's estate. Written statements by the personal representative of the surviving Grantor's estate of the sums that may be paid under this section shall be sufficient evidence of their amounts, and the Trustee shall be under no duty to see to the application of any such payments. This section shall not apply to any property includable in the surviving Grantor's gross estate by reason of Section 2044 of the Code, it being the Grantors' intention that any estate tax attributable to such Section 2044 property shall be apportioned to and charged against such property in accordance with section 3.3(a); and

(c) To the extent the Article II Trust holds interests in a Subchapter S corporation or Limited Liability Company associated with HVAC or electrical businesses (each a "Core Operating Company"), such business interests shall pass as follows:

- (i) Kasey Hodge shall receive 51% of the voting shares or interests of any such Core Operating Company;
- (ii) Christian Durr shall receive 49% of the voting shares or voting interests of any such Core Operating Company;
- (iii) 25% of the non-voting shares and 25% of the non-voting membership interests of any such Core Operating Company shall be distributed in equal shares to Kelsey Hodge, Kasey Hodge, Olivia Durr and Christian Durr; provided, however, that if any of the above named persons is not then living, the share that would have been distributed to them, if living, shall be distributed to his or her then living descendants, per stirpes, if any, and if none, such share shall be distributed equally to those above named persons who are then living.

(d) The balance after any distributions under subsections (a), (b), and (c) if any, shall be distributed to those of the Grantors' descendants who survive the surviving Grantor, per stirpes, subject to being held in the Descendants Trusts; provided, however, if no descendant of the Grantors survives the surviving Grantor, such balance of the remaining unappointed trust property shall be distributed to the Grantors' Contingent Beneficiaries.

ARTICLE III - DESCENDANTS TRUSTS

3.1 Creation of Descendants Trusts. If any unappointed property of the Article II Trust, principal of the Marital Trust, property of an SN Trust, and/or property of the Family Trust (other than Personal Effects) upon the termination of such trust or trusts is to be distributed to a person who has not attained age 40, such property shall not be distributed outright to such child or other descendant, but instead the Trustee shall hold such property as a separate trust for the benefit of such child or other descendant, and the records of the Trustee shall be kept accordingly. Each trust created under this Article (herein referred to collectively as the "Descendants Trusts" and individually as a "Descendants Trust") shall be known by the initials of the child or other descendant of the Grantors for whom it is created (hereafter called the "Beneficiary" of such trust), and such child or other descendant shall be the primary beneficiary thereof.

3.2 Independent Trustee Distributions. With regard to each Descendants Trust, the Independent Trustee, when an Independent Trustee is serving, may distribute to the Beneficiary thereof such amounts of the income and principal of such trust as the Independent Trustee, in the Independent Trustee's discretion, deems desirable. With regard to each Descendants Trust, the Independent Trustee may also distribute to any one or more of the descendants of the Beneficiary thereof such amounts of the income and principal of such trust as the Independent Trustee, in the Independent Trustee's discretion, deems desirable.

3.3 Distributions to Beneficiary. With regard to each Descendants Trust, the Trustee may distribute to the Beneficiary thereof such amounts of the income and principal of such trust as the Trustee determines to be necessary to provide for such Beneficiary's health, support, maintenance and education. The Grantors desire that the Beneficiary of each Descendants Trust be afforded the opportunity to obtain as complete an education, including attendance at college, graduate, professional and special trade schools, as such Beneficiary may reasonably desire and be qualified to obtain.

3.4 Distribution Considerations. In making any distributions described in sections 5.3 from a Descendants Trust to the Beneficiary thereof, the Trustee may consider any one or more of the following: (a) age, education and station in life of such

Beneficiary; (b) the standard of living to which such Beneficiary shall have been accustomed as of the date of death of the surviving Grantor; (c) any known resources of such Beneficiary including the ability of such Beneficiary to earn funds for his or her own health, support, maintenance and education, except while such Beneficiary is pursuing his or her education on a full time basis; (d) the ability of any person who is legally obligated to support such Beneficiary to do so; and (e) the generation-skipping transfer tax consequences of such distribution. Moreover, any Trustee, other than a beneficiary of a trust, may also consider whether or not such distribution would be in the best interest of such Beneficiary.

3.5 Termination. Each Descendants Trust shall terminate when the Beneficiary thereof attains age 40 or dies, whichever event occurs earlier.

3.6 Distribution Upon Termination. Upon the termination of a Descendants Trust, the remaining property of such trust shall be distributed to the Beneficiary thereof, or if such Beneficiary's death is the event that terminates such trust, the remaining property of such trust shall be divided into shares and portions of shares among such Beneficiary's then living descendants per stirpes, and each share or portion so allocated to a descendant of such Beneficiary shall be distributed to such descendant if such descendant has attained age 40, or if such descendant has not attained that age, shall be held by the Trustee in a separate trust for the benefit of such descendant (who will be the "Beneficiary" of such trust) and shall be administered as provided in this Article, or if no descendant of such Beneficiary is then living, the remaining property of such Beneficiary's Descendants Trust shall be distributed per stirpes to those descendants who are then living of the one among the Grantors' descendants who was the closest lineal ancestor of such Beneficiary and who has descendants then living, or if no such descendant is then living, to those of the Grantors' descendants who are then living per stirpes; provided, however, if no descendant of the Grantors is then living, the remaining property of such trust shall be distributed to the Grantors' Contingent Beneficiaries. Any distribution under this section to a child of the Grantors regardless of age or to any other descendant of the Grantors who has not attained age 40 who is the Beneficiary of a Descendants Trust shall not be made outright or to a new Descendants Trust but instead

shall be added to the principal and administered as a part of such Beneficiary's existing Descendants Trust.

3.7 Intention. The Grantors' primary concern in creating the Descendants Trusts is to provide for the Beneficiaries of such trusts, and the interests of any other persons are subordinate to those of such Beneficiaries. In this regard, the Grantors' primary intent is to first provide for the health, education, support and maintenance of each Beneficiary of a Descendants Trust, and the Trustee may exhaust the property of such Beneficiary's Descendants Trust for such purposes without liability to any other persons for doing so. Further, the Grantors direct the Trustee, in investing and managing the assets of a Beneficiary's Descendants Trust, to consider the needs of such Beneficiary as superior to those of any other persons.

ARTICLE IV - TRUSTEE APPOINTMENTS

4.1 Named Trustees. If either of the initial Co-Trustees for any reason fails or ceases to serve as a Co-Trustee of the Article II Trust, then the remaining Co-Trustee shall serve alone as sole Trustee of such trust. If both of the initial Co-Trustees for any reason fail or cease to serve as Co-Trustee or sole Trustee of a trust created under this Trust Agreement, then KASEY HODGE shall become the Trustee of such trust. If both of the initial Co-Trustees and KASEY HODGE for any reason fail or cease to serve as Trustee of any trust created under this Trust Agreement, then OLIVIA DURR and CHRISTIAN DURR, successively and not jointly, in the order named, shall become the Trustee of such trust. After the surviving Grantor's death, each Beneficiary who is one of the Grantors' children may elect at any time after attaining age 30 to be a Co-Trustee of such Beneficiary's Descendants Trust and may elect at any time after attaining age 35 to be the sole Trustee of such Beneficiary's Descendants Trust. If a Beneficiary, after having elected to be the sole Trustee, for any reason fails or ceases to serve and such Beneficiary fails to appoint within 30 days thereafter or to designate in such Beneficiary's Will a successor Trustee for such trust, the last Trustee to serve shall become the Trustee of such Beneficiary's Descendants Trust.

4.2 "Trustee" Meaning. Unless another meaning is clearly indicated or required by context or circumstances, the term "Trustee" shall mean and include the initial Co-Trustees and any successor Trustee or Co-Trustees. Except as otherwise specifically provided in this Trust Agreement, if two or more Trustees are named or serving hereunder and any one or more, but not all, decline or cease to serve for any reason, then the remaining Trustee or Trustees, as the case may be, shall be appointed or continue to serve in such capacity.

4.3 No Bond. No Trustee acting hereunder shall be required to give bond or other security in any jurisdiction.

4.4 Removal and Appointment by Grantors. The Grantors, acting jointly while they are both alive and not incapacitated, or if a Grantor is incapacitated or deceased, the other Grantor acting alone, may at any time remove any Trustee of any trust created under this Trust Agreement, with or without cause, and/or may appoint a Co-Trustee, successor Trustee, or successor Co-Trustees for such trust. Any removal and/or appointment shall be made by acknowledged instrument delivered to the Trustee or Co-Trustee so removed or appointed during the lifetime of the Grantors or the surviving Grantor. Any such appointment pursuant to this section shall supersede the appointment of the successor Trustee of such trust provided in section 6.1 unless the Grantors (or the surviving Grantor) expressly state their (or his or her) intention in writing not to supersede such appointment.

4.5 Removal, Appointment, and Designation by Beneficiaries. After the death of the surviving Grantor, each Beneficiary who is one of the Grantors' children may at any time after attaining age 35: (a) remove any Trustee of such Beneficiary's Descendants Trust, with or without cause; and/or (b) appoint a Co-Trustee, successor Trustee, or successor Co-Trustees of such trust (including such appointing Beneficiary); and/or (c) appoint a Trustee or Co-Trustees or successor Trustee or Co-Trustees of any trust created under this Trust Agreement for a Beneficiary, Ward, or SN Ward who is a descendant of such appointing Beneficiary; and/or (d) designate the order that any successor Trustees and/or Co-Trustees appointed pursuant to subsections (b) or (c) shall serve; provided, however, if a Beneficiary removes an Independent Trustee of such

Beneficiary's Descendants Trust, such Beneficiary shall appoint a successor Independent Trustee of such trust. Any removal, appointment or designation pursuant to this section shall be made by acknowledged instrument delivered to such Trustee or Co-Trustee during the lifetime of the Beneficiary making such removal, appointment or designation or by specific reference in such Beneficiary's Will. Any such appointment or designation pursuant to this section shall supersede the appointment of Trustee or Co-Trustees or successor Trustee or Co-Trustees of such trust provided in section 6.1 unless the appointing Beneficiary expressly states his or her intention in writing not to supersede such appointment.

4.6 Resignation. Any Trustee of the Article II Trust, the Marital Trust, or the Family Trust may resign by giving notice to each of the Grantors who is then living and to the Grantors' children, any Trustee of an SN Trust may resign by giving notice to the Grantors' children and the Grantors' oldest living descendant (if other than a child), and any Trustee of any other trust created under this Trust Agreement may resign by giving notice to the Beneficiary or Ward of such trust. If the trusteeship of the Article II Trust becomes vacant for any reason, the power to appoint a successor shall be exercisable, in succession, by the Grantors, acting jointly while they are both alive and not incapacitated, or if a Grantor is incapacitated or deceased, the other Grantor acting alone, for a period of 60 days; and by the Grantors' children who are then living and not incapacitated (acting jointly) for a period of 30 days if the Grantors fail to appoint a successor Trustee within such period. If the trusteeship of the Marital Trust or the Family Trust becomes vacant for any reason, the power to appoint a successor shall be exercisable by the surviving Grantor for a period of 60 days; and by the Grantors' children who are then living and not incapacitated (acting jointly) for an additional 30 days if the surviving Grantor fails to appoint a successor Trustee within such period. If the trusteeship of an SN Trust becomes vacant, the power to appoint a successor shall be exercisable by those of the Grantors' children who are then living and not incapacitated (acting jointly) for a period of 30 days, or if the Grantors' children fail to appoint a successor within such period for any reason, by the Grantors' oldest living descendant for an additional 30 days. If the trusteeship of any other trust becomes vacant, the power to

appoint a successor shall be exercisable by the Beneficiary or Ward of such trust for a period of 90 days. If no successor Trustee has been appointed within 90 days of such vacancy, then upon written request of any interested party, any judge of any court having jurisdiction over such trust shall have the power to appoint a successor. For purposes of this Trust Agreement the trusteeship of a trust shall be considered to have become vacant if: (a) the sole Trustee of such trust for any reason ceases to serve as Trustee and all persons eligible to serve as Trustee of such trust named in section 6.1 or appointed pursuant to sections 6.1, 6.4 or 6.5, as the case may be, decline to serve or are deceased or otherwise fail to serve as Trustee of such trust, or (b) the sole Trustee of such trust for any reason ceases to serve as Trustee and all persons who are granted the right to appoint a successor Trustee under sections 6.1, 6.4 and 6.5 fail to do so.

4.7 Expense Reimbursement; Reasonable Compensation. Every Trustee shall be reimbursed for the reasonable costs and expenses incurred in connection with such Trustee's duties, and every Trustee (except the Grantors) shall be entitled to fair and reasonable compensation for services rendered by such Trustee in an amount not exceeding the customary and prevailing charges for services of a similar character at the time and place such services are performed; provided, however, if more than one individual Trustee is serving, the aggregate compensation for services of all individual Co-Trustees shall not exceed the customary and prevailing charges paid to a single individual Trustee for services of a similar character at the time and place such services are performed.

4.8 Resignation of Corporate Trustee; Termination of Small Trust. If, in the opinion of a corporate Trustee eligible to serve or already serving, it is or becomes uneconomical for it to serve or continue to serve because of the size of such trust, then if a Co-Trustee is serving it may resign or refuse to serve, or if no Co-Trustee is serving, it may resign or refuse to serve, and a successor Trustee shall be appointed as provided in section 6.6. Furthermore, if a corporate Trustee is serving as Trustee of a trust other than an SN Trust and at the time such trust has a net asset value (on the books of such corporate Trustee) less than the amount that would have had the same purchasing power as \$300,000 had on the January 1st following the date of this Trust Agreement (based on

the U.S. Consumer Price Index for the Consolidated Metropolitan Statistical Area applicable to San Antonio, Texas, or if such index is not available, a substantially similar index), such corporate Trustee may terminate such trust other than an SN Trust by complete distribution to the surviving Grantor, if living, otherwise to the Beneficiary or the Ward of such trust.

4.9 Corporate Trustee Defined. The terms "corporate Trustee" or "corporate fiduciary" shall mean a bank having trust powers or a trust company having (alone or when combined with its parent organization and affiliate) assets under management in excess of \$1,000,000,000 (U.S.) or capital and surplus in excess of \$10,000,000 (U.S.), and the successor (by merger or consolidation) bank or trust company to any such corporate Trustee or corporate fiduciary serving hereunder. If a bank or trust company was a corporate Trustee or corporate fiduciary (as defined above) when it accepted its fiduciary position hereunder, it shall not cease to be considered a corporate Trustee or corporate fiduciary because its assets under management or capital and surplus later declines below the amount stated above. If a corporate Trustee or corporate fiduciary is serving as a co-fiduciary, it shall have exclusive custody of the assets, books and records of the trust it serves but shall make such assets, books and records available for inspection and copying by every other fiduciary of such trust.

4.10 Ancillary Administration. If ancillary administration of any trust property is required in any state or other jurisdiction where the Trustee shall be unable or unwilling to serve, then the Trustee shall designate in writing the person or corporate fiduciary to act in such capacity, with all the powers and immunities of the Trustee. Unless prohibited by the laws of the jurisdiction where such property is located, the Grantors direct that upon sale by the ancillary fiduciary of such property the net proceeds thereof shall be paid to the Trustee.

4.11 Independent Trustee. For purposes of this Trust Agreement, a party is an "Independent Trustee" with respect to any Descendants Trust if such party is an individual or corporate Trustee other than: (a) the Beneficiary of such trust; or (b) a related or subordinate party to the Beneficiary of such trust within the meaning of Section 672(c) of the Code. If a trust has Co-Trustees, only one of whom is an Independent

Trustee, the Co-Trustee who is an Independent Trustee shall be considered as the "Independent Trustee" of such trust for purposes of this Trust Agreement. If a trust has Co-Trustees, two or more of whom is each an Independent Trustee, the Co-Trustees each of whom is an Independent Trustee shall, together, be considered as the "Independent Trustee" of such trust for purposes of this Trust Agreement. A Trustee who is not an Independent Trustee shall have no power or right to make or participate in the making of decisions as to amounts of income and/or principal to be distributed pursuant to the Independent Trustee's discretionary authority to make distributions from a trust (or decisions to withhold and reinvest income of such trust); nor shall any Trustee other than an Independent Trustee have the power or right to veto or disapprove the making of any such income and/or principal distributions (or decisions to withhold and reinvest income), and such powers shall only be exercisable by the Independent Trustee.

4.12 Incapacity. No person who is incapacitated shall serve or continue to serve as Trustee hereunder. For purposes of this Trust Agreement, a person shall be considered "incapacitated" (a) if such person is a minor under applicable law; (b) upon a declaration of incompetency by a court of competent jurisdiction; or (c) when such person's primary physician certifies in writing that, based on such physician's examination of such person, the person is mentally incapable of managing and/or giving prompt and intelligent consideration to his or her financial matters; provided, however, if such person does not have a primary physician or if he or she has a primary physician but such primary physician refuses or is unwilling to certify in writing whether or not such person is capable or incapable of managing his or her financial affairs then such determination of whether or not such person shall be considered incapacitated may instead be made by two other physicians. By executing this instrument or accepting appointment as Trustee, each Trustee hereby authorizes each physician who examines such person to determine his or her incapacity, to disclose such person's physical or mental condition, to disclose the physician's diagnosis or opinion, and to release a written certification of the results of the physician's findings to any third party including, but not limited to, the Grantors, a named successor Trustee, the Beneficiary of a trust, and the attorney-in-fact or personal representative of the Grantors or the Beneficiary of a trust.

ARTICLE V - ADMINISTRATIVE PROVISIONS

5.1 Survivorship. For purposes of this Trust Agreement, including the marital deduction gift to the Marital Trust, no person, except the surviving Grantor, shall be presumed to have survived either Grantor if such person should die within 90 days of such Grantor's death. If the Husband and Wife die in such a manner that it cannot be determined in what order their deaths occurred, the Wife shall be presumed to have survived the Husband. A person named in section 6.1 shall not be disqualified from serving as a Trustee because of the first sentence of this section.

5.2 Amendment and Revocation. While both of the Grantors are living, the Grantors, acting jointly, may by acknowledged instrument alter, amend, revoke or terminate this Trust Agreement by notice to the Trustee. Upon the death of the deceased Grantor, each trust created under this Trust Agreement other than the Article II Trust shall become irrevocable, and the surviving Grantor shall thereafter be without power to alter, amend, revoke or terminate any of the provisions contained in this Trust Agreement other than the provisions of the Article II Trust (except sections 2.4 and 2.5 which become irrevocable upon the death of the deceased Grantor). No gift is intended by either Grantor in executing this Trust Agreement.

5.3 Character of Trust Property. All property transferred to a trust held under this Trust Agreement shall at all times (while held in trust or upon distribution from the trust or upon revocation of this Trust Agreement) retain its character as community property or separate property under the marital property laws of Texas. It is the intention of each of the Grantors that any community property contributed to the Article II Trust that immediately prior to its contribution is subject to the sole management, control and disposition of only one of the Grantors and the separate property of such Grantor shall continue to be the subject to the sole management, control and disposition of such Grantor while he or she is serving as a Trustee of such trust ("Controlling Trustee"). At any time when the other Grantor is serving as a Co-Trustee of the Article II Trust, he or she, to the extent required by any third party, agrees to give the Controlling Trustee power of attorney to act for the other Co-Trustee with regard to the management, control and

disposition of such trust property intended by the Grantors to continue to be subject to the sole management and control of the Controlling Trustee.

5.4 Trust Merger. After the death of the surviving Grantor, the Trustee may merge, without any liability or obligation to any beneficiary thereof (whether a direct or contingent beneficiary), two or more trusts created under the Wills of the Grantors and/or under any trust agreements established by either or both of the Grantors during their lifetimes into a single trust without a judicial proceeding if the result does not impair the rights of any beneficiary or adversely affect achievement of the purposes of such separate trusts. The Trustee shall complete such merger by executing an acknowledged instrument stating that the trusts have been merged pursuant to this section and stating the effective date of the trust merger. Notwithstanding the foregoing, (a) the Trustee shall have no power to combine any trust that holds stock of an S corporation with any other trust not qualifying as an S corporation shareholder and (b) a person who is a Trustee and who is also a Beneficiary shall have no authority to combine any trust created under this Trust Agreement with any trust over which such person holds a general power of appointment as defined in Section 2041 of the Code (other than a contingent power as provided in section 5.7). If trusts having different contingent beneficiaries are merged pursuant to this section and the merged trust is to be distributed to its contingent beneficiaries, such distribution shall be divided pro rata among the contingent beneficiaries of the original trusts in proportion to the original trusts' respective values at the effective date of such merger. The Trustee may make a merger under this section so long as the Trustee is not deemed to possess, exercise, or release any general power of appointment by virtue of such power to make such merger.

5.5 Maximum Duration of Trusts. Notwithstanding any other provision of this Trust Agreement to the contrary, the provisions of this section shall control the maximum duration of any trust created under this Trust Agreement and of any interest in such trust. Such trust or interest shall continue in existence to the fullest extent permitted under Texas law, specifically including Section 112.036 of the Texas Trust Code and any successor statute then in effect as of the vesting of any interest in a trust created under this Trust Agreement. If under the law of the State of Texas the longest period that

property may be held in trust, including any trust created pursuant to the exercise of a special power of appointment, is determined with reference to the death of the last survivor of a group of individuals who were in being upon a certain date, those individuals shall consist of the Grantors and those descendants of the Grantors who are living at the deceased Grantor's date of death; provided, however, if pursuant to section 7.4, the Trustee at any time merges and administers as one trust any trust or trusts created hereunder and any trust or trusts under any other instrument, such merged trust shall not continue beyond the earlier date on which either of such trusts would, without regard to such merger, have been required to expire under the rule against perpetuities or other applicable law governing the maximum duration of trusts. If any trust or trusts (including a merged trust) would, but for the terms of this section, continue beyond such date, such trust shall nevertheless at that time terminate and the remaining property of such trust shall be distributed to the Beneficiary thereof. No exercise of any special power of appointment hereunder shall be effective to the extent that it violates any rule against perpetuities applicable to any trust created under this Trust Agreement, and any trust created by the exercise of a limited power of appointment held under this Trust Agreement, which exercise results in the creation of another limited power of appointment, shall terminate at such time as required to avoid the application of Sections 2041(a)(3) and 2514(d) of the Code. If necessary, then such exercise shall be adjusted to the limited extent necessary such that it does not violate any applicable rule against perpetuities. Notwithstanding the foregoing, nothing in this section shall be construed to direct that real property held in a trust created under this Trust Agreement be retained or refuse that real property held in a trust created under this Trust Agreement may be sold for a period longer than 100 years.

5.6 Testamentary Trustee. All non-probate assets (including, but not limited to, any payments from an employee or self-employed benefit plan, individual retirement account, or annuity, or any proceeds of any insurance policy on the life of a Grantor) payable to the Trustee hereunder shall be allocated as follows: (a) if one of the Grantors is living, that portion of such payments and proceeds representing the community and/or separate property of the surviving Grantor shall be allocated to and

distributed as part of the surviving Grantor's share and that portion of such payments and proceeds representing the community and/or separate property of the deceased Grantor shall be allocated to and distributed as part of the deceased Grantor's share, or (b) if both of the Grantors are deceased, such payments and proceeds shall be allocated and distributed in the same manner as they would have been distributed had they been part of the surviving Grantor's share. Non-probate assets payable to the Trustee shall not be liable for or used to pay (but may be loaned for such purposes) any taxes, liabilities, debts, or any other claims against either Grantor's estate; provided, however, such assets may be used to pay estate tax assessed with respect to such assets.

5.7 Grantors' Principal Residence. If prior to the death of the deceased Grantor, the Trustee of the Article II Trust holds an interest in any residential property constituting the principal residence of the Grantors, then the Grantors shall have the exclusive right to use and occupy as their principal residence such residential property at no cost, rent-free, and without charge for their lifetimes; provided, however, while using such property the Grantors shall be obligated to pay all property taxes and assessments thereon, maintain same in good state of repair, maintain adequate fire and extended casualty insurance thereon and pay for any capital improvements the Grantors desire to make to such property. Further, such property shall be acquired by an instrument of title that describes the property with sufficient clarity to identify it and the interest acquired, and the instrument shall be executed by the Grantors or the respective personal representatives of their estates and recorded in the real property records of the county where the property is located. This section shall be construed in accordance with the Grantors' intention to qualify such property as their residential homestead for all purposes by causing the Article II Trust to be a "qualifying trust" as defined in Section 11.13(j) of the Texas Property Tax Code and Section 41.0021 of the Texas Property Code. This intention shall be overriding and shall control if in conflict with the literal language of this section.

5.8 Surviving Grantor's Principal Residence. After the death of the deceased Grantor, if the Trustee of any trust created under this Trust Agreement holds an interest in any residential property constituting the principal residence of the surviving

Grantor, the surviving Grantor may direct such Trustee to retain such principal residence or any replacement residence. The surviving Grantor may also direct the Trustee of any trust created hereunder to sell such principal residence or any replacement residence and invest the proceeds of such sale in a replacement residence. The proceeds of a sale shall be the gross sales price less all closing costs and other expenses of sale. The surviving Grantor shall have the exclusive right to use and occupy as his or her principal residence such residential property and any replacement residence at no cost, rent-free, and without charge for his or her lifetime; provided, however, while using such property the surviving Grantor shall be obligated to pay all property taxes and assessments thereon, maintain same in a good state of repair, maintain adequate fire and extended casualty insurance thereof and pay for any capital improvements the surviving Grantor desires to make to such property. Further, any such property shall be acquired by an instrument of title that describes the property with sufficient certainty to identify it and the interest acquired, and the instrument shall be recorded in the real property records of the county where the property is located, executed by any one or more of the following parties to the extent applicable: the Trustee, the surviving Grantor and/or the personal representative of the deceased Grantor's estate. This section shall be construed in accordance with the Grantors' intention to qualify such property as the surviving Grantor's residential homestead for all purposes by causing such trust to be a "qualifying trust" as defined in Section 11.13(j) of the Texas Property Tax Code and Section 41.0021 of the Texas Property Code. This intention shall be overriding and shall control if in conflict with the literal language of this section.

5.9 Beneficiary's Principal Residence. If a Descendants Trust holds an interest in any residential property constituting the principal residence of the Beneficiary of such trust, then such Beneficiary shall have the exclusive right to use and occupy as such Beneficiary's principal residence such residential property at no cost, rent-free, and without charge for such Beneficiary's lifetime. Further, any such property (or any interest therein) shall be acquired by an instrument of title that describes the property with sufficient certainty to identify it and the interest acquired, and the instrument shall be executed by the personal representative of the estate of the surviving Grantor or the

Trustee and recorded in the real property records of the county where the property is located. This section shall be construed in accordance with the Grantors' intention to qualify such property as such Beneficiary's residential homestead for all purposes by causing any Descendants Trust holding an interest in such property to be a "qualifying trust" as defined in Section 11.13(j) of the Texas Property Tax Code and Section 41.0021 of the Texas Property Code. This intention shall be overriding and shall control if in conflict with the literal language of this section.

5.10 QTIP Election. Each Grantor expressly confers upon the Trustee the discretion to assist the personal representative of the deceased Grantor's estate to elect for the property passing to the Marital Trust to qualify for the federal estate tax marital deduction allowable under Section 2056 of the Code and the regulations pertaining to that section. Without limiting the discretion contained in the foregoing sentence, each Grantor expects that the Trustee will assist his or her personal representative in making the election with respect to all assets passing to the Marital Trust unless the anticipated timing of the deceased Grantor's death and the surviving Grantor's death and the computation of the combined estate taxes of the Grantors' estates render such an election inappropriate, in the judgment the personal representative of the deceased Grantor's estate. The Trustee shall never be liable for assisting the personal representative of the deceased Grantor's estate in making such election, nor shall the Trustee be liable if the personal representative of the deceased Grantor's estate exercises his or her discretion not to make such an election. If the personal representative of the deceased Grantor's estate should elect that only a portion of the property passing to the Marital Trust qualify for the federal estate tax marital deduction, or if such personal representative should not elect to qualify any of the property passing to the Marital Trust for the federal estate tax marital deduction, thereby causing all or part of the Marital Trust to be subject to estate tax, then the incremental estate tax shall be paid out of the assets allocated to such Marital Trust, notwithstanding any other provision of this Trust Agreement.

ARTICLE VI - TRUSTEE PROVISIONS

6.1 Fiduciary Powers. The Trustee shall have all powers conferred upon trustees by the Texas Trust Code, and by any future amendments to the Texas Trust Code or any corresponding statute, except for any instance in which the Texas Trust Code, as amended, or any such other statutory provisions may conflict with the express provisions of this Trust Agreement, in which case the express provisions of this Trust Agreement shall control. In addition to such powers, the Trustee is specifically authorized:

(a) To retain, in the discretion of the Trustee, any property transferred to the Trustee by the Grantors or either of them or any other person, including securities of any Executor or Trustee and any interest in any closely-held entities of which any trust hereunder has an interest without liability for any depreciation or loss occasioned by such retention, and in so doing and by this subsection, it is the Grantors' express intention that, to the maximum extent allowed by law, the Trustee shall not be subject to the duty to diversify under Section 117.005 of the Texas Trust Code with respect to the initial assets of any trust created under this Trust Agreement or any subsequent assets of any trust created under this Trust Agreement;

(b) To exchange, sell or lease (including leases for terms exceeding the duration of all trusts created under this Trust Agreement), for cash, property or credit, or to partition, from time to time, publicly or privately, at such prices, on such terms, times, and conditions and by instruments of such character and with such covenants as the Trustee may deem proper, all or any part of the properties of each trust, and no vendee or lessee of the Trustee shall be required to look to the application of any funds paid to the Trustee;

(c) To use the cash and any of the securities or other property owned by a Grantor to satisfy any loans or other debts for which the estate of such Grantor is liable or to continue all or any portion of such loans or debts;

(d) To borrow money from any source (including any Trustee) and to mortgage, pledge, or in any other manner encumber all or any part of the assets of any trust as may be advisable in the judgment of the Trustee for any purpose;

(e) To invest and reinvest each of the trust estates in any kind of property whatsoever, real or personal (including oil, gas and other mineral leases, royalties, overriding royalties and other interests), whether or not

productive of income and without regard to the proportion that such property or property of a similar character held may bear to the entire trust estate; provided, however, that the Grantors (or either of them) may direct the Trustee as to the investments to be made by the Trustee, and the Trustee shall not be liable to any person for any losses resulting from following the written direction of the Grantors (or either of them) in investing the trust assets;

(f) To employ attorneys, accountants, investment managers, specialists and such other agents as the Trustee shall deem necessary or desirable; to have the authority to appoint an investment manager or managers to manage all or any part of the assets of any trust, and to delegate to said manager investment discretion and such appointment shall include the power to acquire and dispose of such assets; and to charge the compensation of such attorneys, accountants, investment advisors, investment managers, specialists and other agents and any other expenses against such trust. Notwithstanding Section 117.011 of the Texas Trust Code, to the maximum extent allowed by law, if any Trustee chooses to delegate the authority to make investment decisions to a third party, and the terms of such delegation either (i) require the Trustee or any beneficiary to submit all disputes to arbitration or (ii) limit the period for bringing an action by the Trustee or a beneficiary of the trust with respect to such third party's actions to a period shorter than applicable to trustees under the law of the State of Texas, such Trustee shall not be liable to the beneficiaries or to the trust for actions of the third party to whom the function was delegated;

(g) To enter into any transaction including, but not limited to, purchases, sales, and/or loans of any property of any trust created under this Trust Agreement on behalf of any trust (including loans to beneficiaries for adequate security and adequate interest) despite the fact that another party to any such transaction may be (i) a trust of which any Trustee under this Trust Agreement is also a trustee, including any trust created under this Trust Agreement; (ii) an estate of which any Trustee under this Trust Agreement is also a personal representative; (iii) a business or trust controlled by any Trustee under this Trust Agreement or of which any such Trustee, or any director, officer or employee of any such corporate Trustee, is also a director, officer or employee; or (iv) any beneficiary or Trustee under this Trust Agreement acting individually; by this subsection (g) the Grantors intend to override the constraints that might otherwise be imposed on the Trustee under Subchapter N of Chapter 356 of the Texas Estates Code or Sections 113.052 and 113.053 of the Texas Trust Code;

(h) To make, in the Trustee's discretion, any distribution required or permitted to be made to any beneficiary under any trust established by this trust instrument, in any of the following ways: (i) to such beneficiary

directly; (ii) to the guardian of such beneficiary's person or estate; (iii) by utilizing the same, directly and without the interposition of any guardian, for the health, support, maintenance, or education of such beneficiary; (iv) to a person or financial institution serving as Custodian for such minor beneficiary under the Uniform Transfers to Minors Act or the Uniform Gifts to Minors Act of Texas or any other state; or (v) by reimbursing the person who is actually taking care of such beneficiary (even though such person is not the legal guardian) for expenditures made by such person for the benefit of such beneficiary; and the written receipts of the persons receiving such distributions shall be full and complete acquittances to the Trustee; provided, however, the Trustee shall not have the power to make the distributions described in this subsection (h) if such power would cause the Marital Trust to fail to qualify for the marital deduction under Section 2056 of the Code. Notwithstanding anything to the contrary in this Trust Agreement, the Trustee, other than an Independent Trustee, shall make no discretionary distributions of income or principal of any trust that would to any extent reduce or discharge the legal obligation of any person to support any other person;

(i) To store Personal Effects given to a person who is a minor (or a person who the Trustee deems incapacitated) for later distribution to such person, or to sell such property and add the proceeds of sale to a trust of which such person is a beneficiary;

(j) To partition in kind and make distributions (including the satisfaction of any pecuniary bequest or funding of any trust) in cash, in specific property, in undivided interests in property, or partly in cash and partly in property, and the Trustee may make such partitions and distributions without regard to the income tax basis of specific property allocated to any beneficiary (including any trust) and without making pro-rata distributions of specific assets;

(k) To release, in the discretion of the Trustee, any fiduciary power at any time, in whole or in part, temporarily or permanently, by acknowledged instrument;

(l) To register and carry any securities or other property in the name of the Trustee or in the name of the nominee of any Trustee (or to hold any such property unregistered) without increasing or decreasing the fiduciary liability of the Trustee; to exercise any option, right or privilege to purchase or to convert bonds, notes, stocks (including shares or fractional shares of stock of any Trustee and including qualified and nonqualified stock options awarded to either Grantor), securities or other property, and to borrow money for the purpose of exercising any such option, right or privilege; and to vote any stock held in the trusts;

(m) To invest the trust assets in any life insurance policy or policies (including term insurance) on the life of one or more of the beneficiaries of the trusts, or on the life of any person or persons in whom one or more of the beneficiaries of the trusts have an insurable interest;

(n) To invest and reinvest all or part of the assets of each trust in any common trust fund of any corporate Trustee and to buy, sell, or trade in securities of any nature;

(o) To continue any business (whether a proprietorship, corporation, partnership, limited partnership or other business entity) transferred to the trust estates for such time as the Trustee may deem it to be in the best interests of the trusts; to employ in the conduct of any such business such capital out of any of the trusts as the Trustee may deem proper; to borrow money for use in any such business alone or with other persons financially interested in such business, and to secure such loan or loans by a mortgage, pledge or any other manner of encumbrance of, not only the trusts' interest in such business, but also such portion of the trusts outside of such business as the Trustee may deem proper; to organize, either alone or jointly with others, new corporations, partnerships, limited partnerships or other business entities; and generally to exercise with respect to the continuance, management, sale or liquidation of any business transferred to the trust estates, or of any new business or business interest, all the powers necessary for its successful operation;

(p) To execute lease, pooling or unitization agreements (including agreements of such nature extending beyond the terms of all trusts created under this Trust Agreement) with respect to any mineral or royalty interest held or acquired by any of the trusts; to drill or contract for the drilling of wells for oil, gas or other minerals; to make dry hole or bottom hole contributions; to enter into any operating agreements with reference to any mineral leases or properties held or acquired by any trust; and generally, with reference to oil, gas and other mineral properties and operations, to enter into such agreements and to do all such other things (whether or not presently recognized as common or proper practice by those engaged in the business of prospecting for, developing, producing, processing, transporting or marketing oil, gas or other minerals) as the Trustee may deem to be advantageous;

(q) To make, in the discretion of the Trustee, elections permitted under Section 643(g) of the Code to treat estimated tax payments made by any trust as estimated tax payments by any one or more of the beneficiaries of such trust;

(r) To administer undivided interests held by multiple trusts created under this Trust Agreement as one fund;

(s) To give any Co-Trustee power of attorney to act for or to sign any document in the name of such Trustee or to delegate to a Co-Trustee part or all of the Trustee's powers and duties, and any action taken pursuant to such power of attorney or delegation shall be valid for all purposes as if done or signed in person by the Trustee giving such power of attorney or making such delegation. Any such power of attorney or delegation may be general, may be limited to certain acts or instruments, may contain conditions and restrictions, and may be changed or revoked at any time by the Trustee who gave such power or made such delegation by giving notice of its change or revocation to the Co-Trustee. In all matters relating to any trust created under this Trust Agreement, the decision of a majority of the Co-Trustees then acting shall control; provided, however, if two Trustees are then acting, then their joint decision shall control;

(t) To use and expend the income and principal of any trust created under this Trust Agreement to (i) take all appropriate action to prevent, identify, or respond to actual or threatened violations of any environmental law or regulation for which the Trustee may have responsibility, including the authority to conduct environmental assessments, audits, and site monitoring to determine compliance with any environmental law or regulation; (ii) take all appropriate remedial action to contain, cleanup, or remove any environmental hazard including a spill, release, discharge, or contamination, either on the Trustee's own accord or in response to an actual or threatened violation of any environmental law or regulation; (iii) institute legal proceedings concerning environmental hazards or contest or settle legal proceedings brought by any local, state or federal agency concerned with environmental compliance, or by a private litigant; (iv) comply with any local, state or federal agency order or court order directing an assessment, abatement or cleanup of any environmental hazards; and (v) employ agents, consultants and legal counsel to assist or perform the above undertakings or actions. Any expenses incurred by the Trustee under this subsection (t) may be charged against income or principal, as the Trustee shall determine;

(u) To purchase any of the property (including speculative investments) in the testamentary estate of either of the Grantors at its fair market value and to retain any property so acquired without liability for depreciation or loss occasioned by such purchase and retention;

(v) To lend money to the testamentary estate of either of the Grantors upon adequate security and for adequate interest;

(w) To pay from trust property the cost of packing, shipping, and insuring the delivery of Personal Effects to a beneficiary at such beneficiary's residence or place of business;

(x) To access, handle, distribute, and dispose of either Grantor's digital assets, and to obtain, access, modify, delete, and control either Grantor's passwords and other electronic credentials associated with either Grantor's digital devices and digital assets;

(y) To enter into any written agreement customarily required of a prospective shareholder, member, or partner as a condition to becoming a shareholder, member, or partner in a corporation, limited liability company, or limited or general partnership under the terms of one or more of the governing instruments of such entity;

(z) In administering the Marital Trust and the Family Trust, the Grantors' primary concern is to provide for the surviving Grantor and such trust shall be administered in accordance with such primary concern. In administering any Descendants Trust, the Grantors' primary concern is to provide for the Beneficiary of such trust and such trust shall be administered in accordance with such primary concern. By this subsection, the Grantors intend to override the duty of impartiality set forth in Section 117.008 of the Texas Trust Code to the maximum extent permitted by law; and

(aa) To the extent the provisions of this section are inconsistent with the Texas Prudent Investor Act, this section shall control.

6.2 Notice or Election. Any notice or election required or permitted to be given by or to a Trustee acting under this Trust Agreement must be given by acknowledged instrument delivered to the person or Trustee to whom it is required or permitted to be given. Any notice required or permitted to be given to a minor under applicable law or an incapacitated person shall be given to such minor's parents or guardian or to such incapacitated person's guardian or agent under a valid power of attorney. If such notice concerns a trusteeship, it shall state its effective date and shall be given at least 30 days prior to such effective date, unless such period of notice is waived. Any action permitted to be taken by a minor under applicable law or an incapacitated person shall be taken by such minor's parent or guardian or by such incapacitated person's guardian or agent under a valid power of attorney.

6.3 Books and Records; Duty to Inform. At times convenient to the Trustee, the books and records of a trust created under this Trust Agreement shall be available for inspection by the Grantors (or the surviving Grantor) and the Beneficiary, Ward, or SN Ward of such trust, if applicable. To the maximum extent permitted by law,

the Trustee shall have no duty to provide any information concerning the administration of any trust created under this Trust Agreement to (a) a beneficiary who is under age 25 or (b) a beneficiary who has attained age 25 but is not entitled or permitted to receive current distributions from such trust and would not receive a distribution from such trust if it then terminated.

6.4 Successor Trustee. Each Trustee shall be relieved of any duty to examine the acts of any prior Trustee and no court accounting shall be required. Each successor Trustee shall be responsible only for properties actually delivered to such Trustee. Any successor Trustee, upon executing an acknowledged acceptance of the trusteeship and upon receipt of those properties actually delivered to such successor Trustee, shall be vested with the estates, titles, rights, powers, duties, immunities and discretions granted to the prior Trustee.

6.5 Fiduciary Liability. In acting or declining to act, each Trustee may rely upon a written opinion of a competent attorney, any facts stated in a written document believed true or any other evidence such Trustee deems sufficient. Each Trustee shall be saved harmless from liability for any action taken or for the failure to take any action, if done in good faith and without gross negligence.

6.6 Income and Principal. At the end of the accounting year of a trust other than the Article II Trust where the income is not required to be distributed, any undistributed income of such trust shall be added to principal; provided, however, any distributions from any trust made pursuant to Section 663(b) of the Code shall be deemed to have been made on the last day of such trust's preceding accounting year. The Trustee may allocate receipts and disbursements between income and principal in any reasonable manner and without regard to how such allocations were made in prior years.

6.7 Allocation of GST Exemption and DSUE Election. The Trustee, in the Trustee's discretion, may assist the personal representative of either Grantor's estate in making an allocation of any remaining portion of such Grantor's GST exemption to any property as to which such Grantor is the transferor, including any property transferred by such Grantor during life as to which such Grantor did not make an allocation prior to his or her death and/or among any generation-skipping transfers (as defined in Section 2611

of the Code) resulting under this Trust Agreement and/or that may later occur with respect to any trust held under this Trust Agreement. The Trustee shall set apart, to constitute two separate trusts, any property that would otherwise have been allocated to any trust created hereunder and would have had an inclusion ratio of neither one nor zero so that one such trust has an inclusion ratio of one and the other such trust has an inclusion ratio of zero. If the Trustee exercises the special election provided by Section 2652(a)(3) of the Code as to any portion of the deceased Grantor's share to be held as part of the Marital Trust, then the Trustee shall set apart property constituting such share in a separate trust with terms identical to the Marital Trust so that the inclusion ratio of such separate trust is zero. The Trustee is authorized to assist the personal representative of the deceased Grantor's estate in filing a federal estate tax return for the purpose of making the election with respect to any deceased spousal unused exclusion amount (as defined in Section 2010(c)(4) of the Code), even if no federal estate tax return would otherwise be due. In addition, if the surviving Grantor so requests in writing, the Trustee shall be obligated to request that the personal representative of the deceased Grantor's estate file a federal estate tax return for the purpose of making such election, irrespective of any discretion granted elsewhere in this Trust Agreement.

6.8 Period for Winding Up. Upon the termination of a trust created under this Trust Agreement, the Trustee shall continue to serve and to exercise all powers of the Trustee as may be necessary to wind up the affairs of such trust and to make distributions of the assets of such trust to its beneficiaries.

ARTICLE VII - MISCELLANEOUS PROVISIONS

7.1 Spendthrift Provisions. Prior to the actual receipt of such property by any beneficiary, no property (income or principal) distributable under any trust created under this Trust Agreement shall be subject to anticipation or assignment by any beneficiary, or to attachment by or to the interference or control of any creditor or assignee of any beneficiary, or be taken or reached by any legal or equitable process in satisfaction of any debt or liability of any beneficiary, and any attempted transfer or encumbrance of any interest in such property by any beneficiary hereunder prior to distribution shall be

void. Notwithstanding the foregoing, any person may disclaim his or her beneficial interest in any trust or may disclaim his or her power of appointment over the property of any trust, in whole or in part, at any time; provided, however, such person shall not be treated as having failed to survive for purposes of the Trustee appointments made herein by reason of such disclaimer; provided, further, nothing in this section shall be construed to limit the valid exercise of a power of appointment by any beneficiary.

7.2 Gifts to Include Income. It is the Grantors' intention that each gift of property to any trust created under this Trust Agreement shall include all the income and property that may arise from that property (or any reinvestment thereof). The beneficial interest of the surviving Grantor in the Marital Trust or Family Trust or of the Beneficiary of any Descendants Trust and such Beneficiary's descendants in the principal or in the income distributed, generated, received, produced, or earned by such trust shall be, and remain, the sole and separate property of the surviving Grantor (in the case of the Marital Trust or Family Trust) or of the Beneficiary thereof and such Beneficiary's descendants (in the case of a Descendants Trust), as the case may be, regardless of when such income is distributed, accumulated, generated, received, produced, or earned by such trust.

7.3 Disclaimer. In the case of any trust provided for under this Trust Agreement to which property (or a portion thereof) becomes payable by reason of a disclaimer, then, notwithstanding any provision in this Trust Agreement to the contrary, the disclaiming person shall have no power or authority (whether a fiduciary or non-fiduciary power or authority) with respect to such trust and shall have no beneficial interest in such trust that, if it were held or possessed by such disclaiming person after such disclaimer, would cause such disclaiming person's disclaimer to fail to be a qualified disclaimer (as defined in Section 2518(b) of the Code). Any disclaimer may be made by the personal representative of a deceased primary beneficiary or by the guardian of the estate of a minor or incapacitated primary beneficiary even if such personal representative or guardian may personally benefit, directly or indirectly, by reason of the disclaimer made on behalf of such deceased, minor or incapacitated primary beneficiary.

7.4 Trusts for Persons Under Age 40 or Incapacitated Persons. If upon the termination of a trust created under this Trust Agreement, any share of trust property would be distributed free of trust to a person who is under age 40 or who is, in the discretion of the Trustee, incapacitated by reason of legal incapacity or physical or mental illness or infirmity (such person is referred to as the "Ward"), then the Trustee may hold such share in a separate trust for the benefit of such Ward. The Trustee shall utilize such amounts of the income and principal of the Ward's trust as the Trustee, in the Trustee's discretion, deems desirable from time to time to provide for the Ward's comfort, health, support, maintenance or education, directly and without the interposition of any guardian; provided, however, the Trustee may distribute to the Ward all or any part of the income of such trust as the Trustee deems desirable, without regard to any standard or other sources of support. A trust created under this section for a Ward who is under age 40 and not otherwise incapacitated shall terminate when such Ward attains that age. Every other trust created under this section shall terminate when the Ward of such trust, in the discretion of the Trustee, is legally, mentally and physically capable of receiving the outright ownership of the property of such trust. Upon the termination of a trust created under this section, the remaining property of such trust shall be distributed to the Ward of such trust, but if a Ward dies before the termination of such Ward's trust, then upon such Ward's death the remaining property of such trust shall be distributed to such Ward's estate.

7.5 S Corporation Stock. Notwithstanding anything to the contrary contained in this Trust Agreement, if any stock of an S corporation (as defined in Section 1361(a) of the Code) is to be distributed to the Trustee of any trust created under this Trust Agreement (other than the Article II Trust or the Marital Trust) or is to be held in trust under other provisions of this Trust Agreement for a Beneficiary or Ward ("original trust"), the Trustee shall, within the time period prescribed by Section 1361(c) of the Code, instead hold such S corporation stock in a parallel separate trust to be known as an "S Corporation Trust" upon terms identical to such original trust except as provided in this section. To the extent the provisions of such original trust conflict with this section, the provisions of this section shall control. If the original trust is the Family Trust, the surviving

Grantor shall be the Beneficiary of the S Corporation Trust under this section. If the original trust is any other trust created under this Trust Agreement, the Beneficiary or Ward of such original trust shall be the Beneficiary of his or her S Corporation Trust. The Trustee shall distribute the net income of the S Corporation Trust to the Beneficiary thereof at least annually, and upon the death of the Beneficiary, any accrued but unpaid income of such S Corporation Trust shall be distributed to such Beneficiary's estate. No income or principal of any S Corporation Trust shall be distributed to any person other than the Beneficiary thereof during the Beneficiary's lifetime. Each Beneficiary's S Corporation Trust shall terminate in accordance with the termination provisions of the original trust, including the exercise of any applicable testamentary power of appointment, and upon such termination, the remaining principal of such Beneficiary's S Corporation Trust shall be added to the original trust from which it was set aside and distributed as a part thereof. Each Beneficiary of an S Corporation Trust shall make the election under Section 1361(d)(2) of the Code in the manner and within the time required by said Section. Each S Corporation Trust is intended to constitute a qualified subchapter S trust, as defined in Section 1361(d)(3) of the Code, and any provision of this Trust Agreement that conflicts with or fails of this intention shall be disregarded, reconciled or amplified to accomplish this objective. Notwithstanding the foregoing provisions of this section, if the Trustee determines that any stock of an S corporation distributable to the Trustee of an original trust should continue to be held in such original trust as an electing small business trust pursuant to Section 1361(e) of the Code, the foregoing provisions of this section shall not apply, and the Trustee shall instead make any elections necessary to allow each corporation to continue or elect such classification as an S corporation and to have such original trust qualify as an electing small business trust unless the Trustee (by unanimous decision of all Trustees serving) determines that a continuation or election of such classification is inadvisable.

7.6 Limitations for Special Powers. Notwithstanding anything to the contrary contained in this Trust Agreement, the special power of appointment granted to any person under this Trust Agreement shall not be exercisable by such person in favor of such person, such person's creditors, such person's estate or the creditors of such

person's estate. The exercise of any special power of appointment by any holder thereof shall supersede the power of the Trustee over the trust property so appointed; provided, however, the exercise of such power shall not affect any distributions of trust property previously made by the Trustee. Furthermore, no person holding a fiduciary power shall exercise such power to discharge such person's legal obligations of support. If a special power of appointment granted under this Trust Agreement may be exercised by the holder thereof "outright, in trust, or otherwise," then such holder may: (a) appoint to takers in default of the exercise of such power not limited to the Grantors' Contingent Beneficiaries; (b) grant a further power of appointment not limited to permissible appointees under the original special power; and (c) appoint among the descendants of any permissible appointee whether or not such permissible appointee is deceased.

7.7 Additional Trust Property. The Grantors, or either of them, or any other person, shall have the right, from time to time, to grant, transfer or convey, either by inter vivos transfer or by Will, to the Trustee such additional property as he or she desires to become a part of any one or more of the trusts hereby created and, subject to acceptance by the Trustee, such additional property shall be allocated to the trusts on the basis specified in the instrument by which such property is transferred, and shall thereafter be held, administered and distributed by the Trustee in accordance with the provisions of this Trust Agreement.

7.8 Special Needs Provisions. Notwithstanding any other provision of this Trust Agreement except section 9.5, if any property held under this Trust Agreement is to be distributed to a person who suffers from a disability qualifying such person for means-tested public benefits ("SN Ward"), such property shall not be distributed outright to, or in trust under other provisions in this Trust Agreement for, such SN Ward, but instead the Trustee shall hold all of such property as a separate trust ("SN Trust") for the benefit of such SN Ward under this section. The Trustee may distribute from time to time for the benefit of the SN Ward of the SN Trust so much or all of the trust income and principal as the Trustee, in the Trustee's discretion, deems desirable. The Trustee may, in the Trustee's discretion, make distributions to meet the SN Ward's needs for food, clothing, shelter or health care, including the payment of premiums of health insurance

(including supplement policies) or other purposes, even if such distributions may result in a disqualification, impairment or diminution of the SN Ward's receipt or eligibility for government benefits or assistance, but only if the Trustee determines that: (a) the SN Ward's needs will be better met if such distribution is made and (b) it is in the SN Ward's best interests to suffer the consequent effect, if any, on the SN Ward's eligibility for or receipt of government benefits or assistance. Each SN Trust shall terminate upon the death of the SN Ward for whom such trust was created, and upon such termination, the remaining property of such SN Trust shall be distributed in the same manner as the remaining trust property would be distributed if the SN Trust was a Descendants Trust and the SN Ward was the Beneficiary of such trust. It is the Grantors' intention to create a purely discretionary supplemental needs trust for the benefit of the SN Ward that supplements, not supplants, any benefits or assistance of any governmental entity for which such SN Ward may otherwise be eligible or which such SN Ward may be receiving. It is not the Grantors' intention to displace public or private financial assistance that may otherwise be available to the SN Ward unless the Trustee has determined that such circumstance would be in the SN Ward's best interests. Consequently, the Trustee shall suffer no liability of any kind if the Trustee makes a distribution that causes the loss or reduction of benefits if the Trustee determines, in the Trustee's discretion, that such distribution is in the SN Ward's best interests. Further, the Trustee may exhaust all of the trust principal under this section for such purpose without liability to any other persons for doing so. Finally, the Trustee shall never have liability to a remainder beneficiary of an SN Trust for failure to identify or utilize any public benefit or assistance for which the SN Ward may be eligible. The term "means-tested public benefits" refers to public programs with limitations on the amount of income and resources a recipient may own, and Supplemental Security Income (SSI) and Medicaid are primary examples of such means-tested public benefits.

7.9 Descendants. References to "descendant" or "descendants" mean lineal blood descendants of the first, second or any other degree of the ancestor designated; provided, however, that such references shall include, with respect to any provision of this Trust Agreement, descendants who have been conceived at any specific

point in time relevant to such provision and who thereafter survive birth; and provided further that a child who is adopted prior to attaining age 19 (an "adopted child") and such adopted child's lineal descendants by blood or adoption shall be considered under this Trust Agreement as lineal blood descendants of the adopting parent or parents and of anyone who is by blood or adoption a lineal ancestor of the adopting parent or of either of the adopting parents.

7.10 Distributions Per Stirpes. Any property to be distributed to a person's descendants "per stirpes" shall be divided into as many shares as there are living children of the person designated and deceased children of the person designated who left descendants who are then living. Each living child shall take one share and the share for each deceased child shall be divided among his or her then living descendants in the same manner. References to "child" or "children" mean a descendant or descendants in the first degree of the parent designated.

7.11 Contingent Beneficiaries. Any property distributable to the "Grantors' Contingent Beneficiaries" shall be distributed to those persons who would inherit separate personal property from the surviving Grantor under the statutes of descent and distribution of Texas if the surviving Grantor died intestate and single at such time.

7.12 Personal Effects. References to "Personal Effects" are to motor vehicles, tools, equipment, clothing, jewelry, household goods, pictures, paintings, sculptures, and other works of art, photographs, books, furniture and furnishings, frequent flyer miles, club memberships, credit card reward points, hotel reward points, other articles of personal use or ornament and/or other personal effects of a nature, use or classification similar to the foregoing, but such references specifically do not include cryptocurrencies, non-fungible tokens (NFTs), or assets owned through blockchain or distributed ledger technology.

7.13 Digital Assets. References to "digital assets" are to: (a) files stored on digital devices, including but not limited to, desktops, laptops, tablets, peripherals, storage devices, mobile telephones, smartphones, and any similar digital device that currently exists or that may exist as technology develops; (b) emails received, email accounts, digital music, digital photographs, digital videos, software licenses, social

network accounts, file sharing accounts, financial accounts, banking accounts, domain registrations, DNS service accounts, web hosting accounts, tax preparation service accounts, online stores, affiliate programs, cryptocurrency accounts, non-fungible tokens (NFTs), accounts owned through blockchain or distributed ledger technology, accounts associated with credit card reward points, hotel loyalty programs, or frequent flyer loyalty programs, other online accounts, and similar digital items that currently exist or that may exist as technology develops, regardless of the ownership of the physical device upon which the digital item is stored; and (c) contents of any electronic communications not otherwise described in this section.

7.14 Discretion. Whenever in this Trust Agreement an action is authorized in the discretion of the Trustee, the term "discretion" shall mean the sole, absolute, and uncontrolled discretion of the Trustee.

7.15 General Power. References to a "general testamentary power to appoint" or "general power of appointment" or similar references are to a general power of appointment as that term is defined in Section 2041 and Section 2514 of the Code.

7.16 Estate Tax. For purposes of this Trust Agreement, the term "estate tax" has the meaning provided in Section 124.001 of the Texas Estates Code (and specifically includes interest and penalties).

7.17 Texas Law. EACH TRUST CREATED UNDER OR PURSUANT TO THIS TRUST AGREEMENT IS ESTABLISHED UNDER THE LAWS OF THE STATE OF TEXAS, AND SHALL BE GOVERNED, CONSTRUED, AND REGULATED BY SUCH LAWS.

7.18 GST Exemption. All references to "GST exemption" shall have the same meaning as that term is defined in Section 2631 of the Code.

7.19 Inclusion Ratio. References to "inclusion ratio" shall have the same meaning as that term is defined in Section 2642(a) of the Code.

7.20 Code. References to various sections of the "Code" are to such designated sections of the Internal Revenue Code of 1986, as amended.

7.21 Tax Exempt Amount. References to the Tax Exempt Amount mean means a pecuniary amount equal to the applicable exclusion amount corresponding to

the applicable credit amount available to a deceased Grantor's estate for federal estate tax purposes, reduced by (i) the amount of the adjusted taxable gifts, if any, made by the deceased Grantor; (ii) the value of all items in the deceased Grantor's federal gross estate which pass or have passed to a beneficiary under provisions of this trust, the deceased Grantor's will or otherwise and which do not qualify for the federal estate tax marital or charitable deductions; and (iii) the amount of any medical expenses and expenses of administration of the deceased Grantor's estate which are paid from the deceased Grantor's residuary estate, but for which no Code Section 2053 deduction is taken in arriving at the deceased Grantor's taxable estate for federal estate tax purposes.

7.22 Headings. The section headings contained in this Trust Agreement are inserted for convenience only and shall not affect the meaning or interpretation of this Trust Agreement.

IN WITNESS WHEREOF, the Grantors and the Co-Trustees have executed this Trust Agreement as of date of the Grantors' signatures hereto.

Date: April 22, 2025


Richard Dean Hodge, Grantor

Date: April 22, 2025


Jessica Jae Hodge, Grantor

Date: April 22, 2025


Richard Dean Hodge, Co-Trustee

Date: April 22, 2025


Jessica Jae Hodge, Co-Trustee

THE STATE OF TEXAS

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COUNTY OF HARRIS

BEFORE ME, the undersigned authority, on this day personally appeared Richard Dean Hodge, known to me to be the person whose name is subscribed to the foregoing instrument as Grantor, and acknowledged to me that such Grantor executed the same for the purposes and consideration therein expressed.

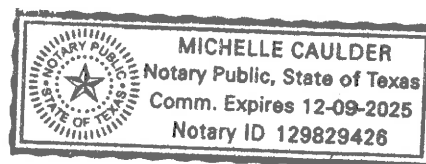
GIVEN UNDER MY HAND AND SEAL OF OFFICE, this the 22nd day of April 2025.


NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

THE STATE OF TEXAS

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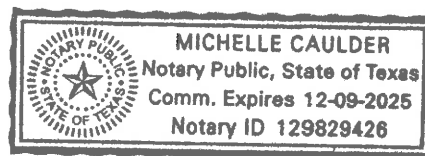
COUNTY OF HARRIS



BEFORE ME, the undersigned authority, on this day personally appeared Jessica Jae Hodge, known to me to be the person whose name is subscribed to the foregoing instrument as Grantor, and acknowledged to me that such Grantor executed the same for the purposes and consideration therein expressed.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this the 22nd day of April 2025.


NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS



THE STATE OF TEXAS

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COUNTY OF HARRIS

BEFORE ME, the undersigned authority, on this day personally appeared Richard Dean Hodge, known to me to be the person whose name is subscribed to the foregoing instrument as Co-Trustee, and acknowledged to me that such Co-Trustee executed the same for the purposes and consideration therein expressed and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this 22nd day of April 2025.

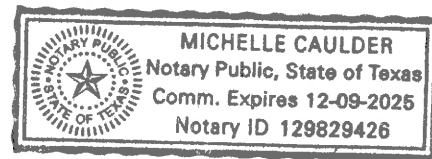


NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

THE STATE OF TEXAS

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COUNTY OF HARRIS



BEFORE ME, the undersigned authority, on this day personally appeared Jessica Jae Hodge, known to me to be the person whose name is subscribed to the foregoing instrument as Co-Trustee, and acknowledged to me that such Co-Trustee executed the same for the purposes and consideration therein expressed and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, this 22nd day of April 2025.



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